LEARNING CENTRE

WHAT IS AN ADVANCE MEDICAL DIRECTIVE?

An instruction recording the medical care preferences an adult individual wishes to opt for if they become incapacitated, it guides the family and healthcare providers

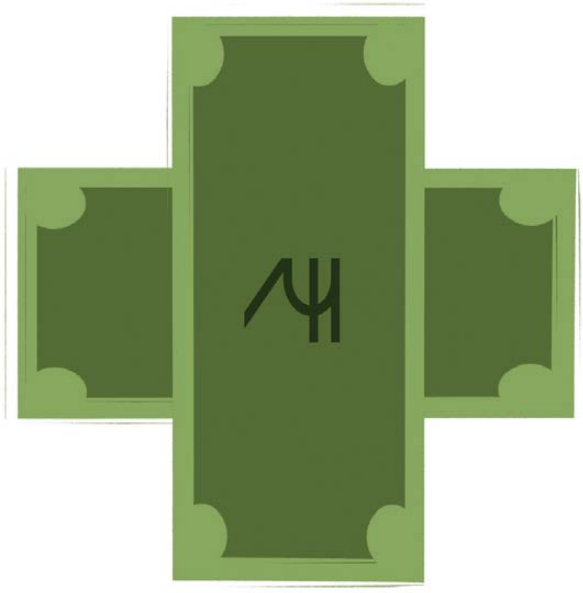


Illustration by **SIDDHANT S**

When it comes to medical treatment, informed decisions by patients are a must. Healthcare providers need to seek consent or informed agreement from the patient before procedures or treatment can be imparted.

However, this process presumes that the patient is competent to make decisions and has understood the possible risks and the outcomes of the procedure or treatment. With ageing, and sometimes near the end of life, a patient may not be able to make informed decisions.

Thus, Advance Medical Directives (AMD) guide the family and care providers when patients cannot make a choice on their own. It is essentially a written legal instruction regarding the preferences for medical treatment if one becomes incapacitated. In 2018, the Supreme Court, recognising the right to die with dignity as a fundamental right, prescribed a detailed set of guidelines for the registration and execution of AMDs, targeted at preventing abuse of the process.

The AMD should clearly specify the name of a guardian or close relative who, in the event of the patient becoming incapable of taking a decision at the relevant time, will be authorised to consent to or refuse the medical treatment. It should also state when a medical treatment may be withdrawn or if any specific medical treatment that will have the effect of delaying the process of death should be given. All such instructions must be absolutely clear and unambiguous.

IN 2018, THE SUPREME COURT PRESCRIBED A DETAILED SET OF GUIDELINES FOR THE REGISTRATION AND EXECUTION OF AMDs

LEGAL VALIDITY

Until 2023, the AMD had to be signed by the patient in the presence of two witnesses, preferably independent, and countersigned by a Judicial Magistrate First Class (JMFC), so designated by the district judge concerned. This was proving to be cumbersome, making it difficult for those seeking to document an AMD. In 2023, the apex court modified its order, doing away with the need for a JMFC. Now, the AMD can be attested before any notary or a gazetted officer who will ascertain its veracity and genuineness.

There is also flexibility in the appointment of guardians with the inclusion of multiple guardians and close relatives, which makes the AMD flexible to execute with the option to address other contingencies. Remember, the person who is drawing up the AMD should be of sound mind and in a position to communicate, relate and comprehend the purpose and consequences of executing the document and it must be voluntary.

The AMD comes into effect when the person becomes terminally ill and is undergoing prolonged medical treatment with no hope of recovery and cure of the ailment. Family members should make the hospital or the physician treating the patient aware of the AMD. This will allow the institutions to ascertain its authenticity and explain the medical condition and consequences to the guardians.

You should use the AMD as a means to avoid unwanted medical treatments and procedures in an effort to preserve life at any cost. By having personal wishes and preferences documented, the decision-making burden on family and healthcare providers is reduced. At the same time, patient autonomy and dignity are preserved by tailoring medical care based on the patient's own choices. ■

–Narayan Krishnamurthy